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Provision of April 10, 2025
Register of provisions
n. 212 of April 10, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, Members, and
Dr. Claudio Filippi, Acting Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, regarding
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC (General Data Protection Regulation, hereinafter “Regulation”);

HAVING REGARD to the Code regarding the protection of personal data
(legislative decree June 30, 2003, n. 196), as
amended by legislative decree August 10, 2018 n. 101, containing
provisions for the adaptation of the national
legislation to the aforementioned Regulation (hereinafter
“Code”);

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's
Regulation n. 1/2000;

REPORTING Prof. Ginevra Cerrina Feroni;

PREMISED

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

With the report received by the Authority on November 10, 2023, Mr. XX complained about receiving
an unwanted phone call from

Immobiliare Valdalpone S.r.l. (hereinafter “Company” and
“Immobiliare Valdalpone”) which, in response to
the request made via email by the interested party on
November 9, 2023, stated that it had
acquired the contact data from Realmaps S.r.l. (hereinafter also “Realmaps” and “supplier”). This
supplier was the subject of a separate
investigation, conducted in April 2024, which
revealed several critical issues regarding
the processing of personal data intended for
real estate agencies for marketing purposes (see
provision n. 11 of January 16, 2025, available at
www.gpdp.it doc. web n. 10110241).

Considering, from what emerged in the documents, that
Immobiliare Valdalpone is included among the real estate
agencies to which Realmaps would have provided the
data for promotional purposes, on May 14, 2024,
the Office made a request for information

(protocol n. 58482/24), pursuant to Article 157 of the Code, aimed primarily at clarifying the relationships with the aforementioned supplier and understanding the compliance measures regarding personal data protection that the Company has implemented concerning the acquired lists, with particular reference to:

- the verification of an original informed consent that authorized its use for commercial purposes;
- the information provided during the phone calls as well as the call script used;
- the verification in the Public Register of Oppositions of the contacted numbers;
- the management of opposition requests made by the interested parties.

In a communication dated June 4, 2024, the Company responded to the aforementioned request from the Office, attributing to Realmaps "any responsibility regarding the management and use of the provided data." This is because, based on the supply contract signed with Realmaps, the Company would have obtained the necessary guarantees regarding the lawfulness

of the acquired lists, considering that the data contained therein would have been obtained "from public lists and public registers [...] freely accessible" as well as supported by the consent for marketing allegedly given by the interested parties to third parties "in compliance with the current privacy protection regulations."

Therefore, according to the Company, "by virtue of what is established in the general contract conditions," the obligations regarding the verification of consents and the consultation of the numbers in the Public Register of Oppositions would have fallen to Realmaps.

Finally, while emphasizing that it acted in good faith, Immobiliare Valdalpone could not indicate, in its response, the exact number of subjects contacted "transferred" by Realmaps.

2. THE CONTESTATION OF VIOLATIONS

With a note dated June 13, 2024 (protocol n. 0072011/24), the Company was informed of the initiation of the procedure, pursuant to Article 166, paragraph 5, of the Code, for the adoption of any measures referred to in Article 58, paragraph 2, of the Regulation,

recognizing the responsibility of Immobiliare Valdalpone for the alleged violation of the following provisions of the Regulation:

- Articles 5, paragraph 1, letter a), 6, paragraph 1, letter a), 7, 14 of the Regulation and Article 130, paragraphs 3 and 3 bis, of the Code for failing to verify, nor document, the conditions of lawfulness of the data acquired from the supplier (information and consent) and for failing to carry out the verification in the Public Register of Oppositions of the contacted numbers;
- Articles 5, paragraph 1, letter a) and 13 of the Regulation for failing to provide the interested parties with the information on

the processing of personal data since the call script used for promotional contacts was not even produced;

- Articles 12, 15, 17, 21, paragraph 2, of the Regulation, as the Company did not satisfy the requests for the exercise of the rights of the data subjects regarding the processing of their personal data, believing that such compliance was the responsibility of Realmaps;
- Articles 5, paragraph 2, 24, and 25 of the Regulation for failing to prove the compliance measures taken regarding personal data protection.

3. DEFENSIVE OBSERVATIONS AND LEGAL ASSESSMENTS OF THE AUTHORITY

By note dated July 3, 2024, the Company fully recalled the contents of the response provided on June 4, 2024, and requested to be heard by the Authority.

During the hearing, which took place on July 8, 2024, the Company produced the standard call script used for direct telephone contacts with property owners; furthermore, it stated that approximately 10,000 of the numbers acquired from Realmaps were involved in promotional calls, “of which 40% were answered on the first contact, the remaining were called back once more.”

The Company also represented that it retains the data acquired from Realmaps in paper format “secured in specific dedicated archives [...] locked” but also “in digital format, except for the lists subject to contestation which were promptly deleted, including in paper version, following the intervention of the Guarantor.” Immobiliare Valdalpone declared that “The lists were purchased, on average, twice a year with a total number of clients amounting to approximately 25,000, until October 2023 [...]”. Finally, it expressed the intention to “consult a professional firm to improve compliance with the regulations” and requested, “if possible, the archiving of the proceedings initiated [against it] or the application of only corrective measures.”

Based on the statements made by Immobiliare Valdalpone, for which the declarant is responsible pursuant to Article 168 of the Code, and considering the documentation produced in the defense phase, it is deemed appropriate to confirm the violations identified in the notice of contestation.

Firstly, Immobiliare Valdalpone is to be considered the data controller, pursuant to Article 4 of the Regulation, having concretely determined the purpose for which the processing was carried out (promotion of its services) and the telephone channel used for this purpose. Therefore, both the compliance obligations imposed by the regulations on personal data protection and the responsibility for the identified violations are directly attributable to the same Company.

The Company has represented that the lists acquired from Realmaps come from public sources and, as such, are freely usable. In this regard, it is deemed appropriate to recall that the processing for marketing purposes carried out through electronic communication tools (such as the telephone) is governed by Article 130 of the Code, in implementation of Article 13 of Directive 2002/58/EC, which constitutes a *lex specialis* where the only admissible legal basis is the consent of the data subject. In the absence of such a legal basis, it is not possible to carry out promotional communications even if the personal data are taken from public registers, lists, websites, acts, or documents known or knowable by anyone (see, in this regard, Guidelines on promotional activities and combating spam - July 4, 2013, provision no. 330, web document no. 2542348, at www.gpdp.it).

That said, it does not appear that the Company, as the data controller, has provided documentation proving the existence of the legality requirements for the personal data acquired from Realmaps. In particular, the Company did not verify, and therefore did not prove, the provision of information to the data subjects by the original data controller who would have acquired the data, pursuant to Article 14 of the Regulation, with only assurances from Realmaps regarding the legitimacy of the processing being present in the records; similarly, it has not been proven whether the alleged consent to the communication to third parties (including Immobiliare Valdalpone S.r.l.) for marketing purposes was granted by the data subjects, nor has it been verified whether such authorization met the requirements of freedom and specificity (as per Article 4, point 11, of the Regulation), with inevitable repercussions on the legitimacy of the promotional activity of the Company itself.

Relying on the contractual guarantees offered by Realmaps and trusting in the positive outcomes of the established collaboration, there would have been, according to the Company, no need to exercise control over the acquired lists and the legality of the contacts transferred as they were allegedly

“consented”; nor did Immobiliare Valdalpone deem it necessary to verify in the Public Opposition Register (so-called RPO) the registration of the acquired numbers, since such compliance would, in its opinion, be the responsibility of Realmaps. In this regard, it should be noted that the verification in the aforementioned Register must be considered a pre-condition for properly conducting telemarketing activities, and the failure to consult it can only result in the impossibility of initiating any campaign. promotional for which the use of the telephone medium is foreseen. Ultimately, the treatment described has resulted in the execution of promotional calls in the absence of informed consent from the interested parties, since the Company has not produced evidential support to document its acquisition, and without having verified the registration in the RPO of the contacted numbers. Therefore, the violation of Articles 5, paragraph 1, letter a), 6, paragraph 1, letter a), 7, 14 of the Regulation, and Article 130, paragraphs 3 and 3 bis, of the Code is confirmed, not only in relation to the case reported, but in the overall context of the treatments carried out by Immobiliare Valdalpone concerning the personal data acquired from Realmaps.

It should also be noted that the call script used for promotional contacts does not overcome the gaps, in terms of transparency, identified during the contestation: in fact, this script, the text of which was produced during the hearing, does not contain the necessary information, pursuant to Article 13 of the Regulation, with which to inform the interested parties about the most relevant aspects of the processing of personal data (nature, origin of the data, legal basis) and the rights referred to in Articles 15 – 22 of the same Regulation. Based on what is indicated in the aforementioned call script, information about the origin of the data is provided to the interested parties only upon their explicit request, as already emerged in the pre-investigation phase in the Company's response email to the notifier (email of November 9, 2023). Moreover, such information, to be provided to the requesting interested parties, would only concern the identifying details of the data provider (in this case, Realmaps), for which the Company would be “available to [communicate] the contact details” for any further requests regarding the processing. Therefore, since the telephone contacts occurred in violation of the principles of lawfulness and transparency, it is deemed appropriate to confirm the violation of Articles 5, paragraph 1, letter a) and 13 of the Regulation.

Immobiliare Valdalpone did not indicate the measures taken to ensure the right of opposition of the interested parties; based on the described setup and the exchange that took place with the notifier on November 9 and 10, 2023, it clearly emerged that, for the fulfillment of requests to exercise rights, the interested parties are directed to Realmaps, for which an email contact is provided for potential communication. This redirection, as reconstructed by the Company, would shift the responsibility exclusively to Realmaps and, above all, would relieve Immobiliare Valdalpone of any informational and control obligations regarding the treatments carried out in its interest, completely abdicating its role as data controller. The Company has indeed deemed that it does not need to provide any feedback, delegating to Realmaps all assessments and verification activities regarding data processing. In other words, the feedback to the interested party inevitably passes through the requests that the latter is required to address to Realmaps, to which they are redirected, resulting in a significant distraction of time and a potential delay in the registration of their will.

Therefore, for a timely fulfillment “without unjustified delay” of the requests of the interested parties (pursuant to Article 12, paragraph 3, of the Regulation), the procedure implemented by the Company, although lacking any foundation, does not appear functional, as it does not allow for adequate management of requests to exercise rights, constituting a violation of Articles 12, 15, 17, 21, paragraph 2, of the Regulation.

The treatments described above present a picture of inadequate control and non-compliance with the regulations on the protection of personal data. The Company has not provided elements capable of proving the lawfulness of the treatment, particularly regarding the obligations of information and consent. In the absence of adequate controls over the entire processing chain (from the collection of data), the marketing activity is in violation of Articles 5, paragraph 2, and 24 of the Regulation, which frame the responsibilities of the data controller in a perspective of necessary enhancement of the principle of accountability aimed at proving compliance with obligations regarding the protection of

personal data, also taking into account the principle of privacy by design (Article 25 of the Regulation). It should be specified that in no way can the provision of a contractual indemnity clause exempt the data controller from carrying out the necessary activities to prove that the treatments have been carried out in compliance with the principles of lawfulness, transparency, and fairness from which the provisions regarding legal basis and information derive.

4. CONCLUSIONS

In light of the arguments set forth in point 3 of this provision, the contested violations are deemed confirmed, and it is necessary to:

- pursuant to Article 58, paragraph 2, letter f) of the Regulation, prohibit any further processing for promotional and commercial purposes carried out through lists acquired from Realmaps for which the Company does not have free, specific, and informed consent from the interested parties (Articles 6 and 7 of the Regulation, as well as Article 130 of the Code); this is due to the fact that some of the lists acquired from Realmaps, by the express admission of the Company, continue to be retained in the company systems both in paper and digital format;
- pursuant to Article 58, paragraph 2, letter d) of the Regulation, order the immediate deletion of said data, except for those that must be retained for compliance with a legal obligation or for the defense of a right in judicial proceedings, as well as for any other purpose that does not require informed, free, specific, documented, and unequivocal consent from the data subject;
- pursuant to Article 58, paragraph 2, letter d) of the Regulation, order the Company, should it intend to direct promotional activities in the future towards telephone numbers provided by third parties, to adopt appropriate procedures aimed at constantly verifying, including through adequate random checks, that personal data is processed in full compliance with the relevant provisions (prior acquisition of free, specific, unequivocal, documented, as well as informed, consent from the data subjects for sending commercial communications) (Articles 6, 7, and 14 of the Regulation);
- pursuant to Article 58, paragraph 2, letter d) of the Regulation, order, for the purposes of the information obligation under Article 13 of the Regulation, to provide the data subjects with all the information therein required;
- pursuant to Article 58, paragraph 2, letter d) of the Regulation, order Immobiliare Valdalpone to adopt appropriate technical and organizational measures to facilitate the exercise of the rights provided for by the data protection legislation and to satisfy, without unjustified delay, the related requests, including the right to object which may be raised "at any time" by the data subject.

Finally, with regard to the treatments already carried out and considering the violations identified above, it is believed that the conditions exist for the application of an administrative monetary sanction pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation.

5. ORDER FOR THE IMPOSITION OF AN ADMINISTRATIVE MONETARY SANCTION

Based on the above, various provisions of the Regulation and the Code have been violated in relation to connected treatments carried out by Immobiliare Valdalpone, for which it is necessary to apply Article 83, paragraph 3, of the Regulation, according to which, if, in relation to the same treatment or connected treatments, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative monetary sanction does not exceed the amount specified for the most serious violation, with the consequent application of only the sanction provided for by Article 83, paragraph 5, of the Regulation.

For the purposes of quantifying the administrative sanction, the aforementioned Article 83, paragraph 5, sets the maximum penalty at the sum of 20 million euros or, for enterprises, at 4% of the annual worldwide turnover of the previous financial year if higher, specifying the methods of quantification of the aforementioned sanction, which must "in any case [be] effective, proportionate, and dissuasive" (Article 83, paragraph 1, of the Regulation), identifying, for this purpose, a series of elements, listed in paragraph 2, to be evaluated when quantifying the related amount.

As aggravating circumstances to be considered in this case, the following must be taken into account:

1. the high number of subjects involved in the treatment for which the Company has not been able to prove the legality requirements for the commercial activity (such as, information and consent):

approximately 25,000 the total numbers acquired by Realmaps, of which 10,000 were subject to promotional contacts (Article 83, paragraph 2, letter a of the Regulation);

2. the severity of the violations detected, particularly with regard to the absence of random checks of the numbers to be contacted acquired from the supplier, the inadequate management of the right to object of the data subjects, as well as the inadequacy of the information provided during the telephone contacts (Article 83, paragraph 2, letter a of the Regulation);

3. the negligent nature of the conduct, since the rules for the protection of personal data were ignored by the controller until the intervention of the Authority (Article 83, paragraph 2, letter b of the Regulation);

4. the inconsistency of the Company's conduct with the substantial regulatory activity of the Authority in the field of marketing, particularly with regard to the obligations of information and consent (Article 83, paragraph 2, letter k of the Regulation).

As mitigating factors, it is believed that the following should be taken into account:

1. the absence of previous proceedings initiated against the Company (Article 83, paragraph 2, letter e of the Regulation);

2. the express intention to adopt corrective measures in order to make the treatment compliant with the data protection legislation (Article 83, paragraph 2, letter f of the Regulation);

3. the degree of cooperation in the interaction with Control Authority (art. 83, par. 2, lett. f of the Regulation);

4. the nature of the data processed, consisting of common personal and contact data (art. 83, par. 2, lett. g of the Regulation).

In an overall perspective of necessary balancing between the rights of the data subjects and the freedom of enterprise, it is essential to prudently evaluate the aforementioned criteria, also in order to limit the economic impact of the sanction.

Therefore, it is believed that - based on the complex of the elements mentioned above - the administrative sanction of a payment of €15,000.00 (fifteen thousand/00), equal to 0.075% of the maximum administrative fine of €20 million, should be applied to Immobiliare Valdalpone.

In this case, it is also believed that the accessory sanction of publication on the Garante's website of this provision, as provided for by art. 166, par. 7, of the Code and art. 16 of the Garante Regulation no. 1/2019, should be applied.

In implementation of the principles of art. 83 of the Regulation, the imposition of this accessory sanction appears proportionate in relation to the severity and particular disvalue of the conduct subject to censure, with specific reference to the high number of subjects receiving the unwanted calls (10,000 contacted lines) and the absence of adequate controls on the lists acquired from third parties and on the related obligations of information and consent of the data subjects for the processing of data for promotional purposes. The conduct of the Company has shown a culpable and ongoing insensitivity to the issue of personal data protection until the intervention of the Authority.

It is reminded that, pursuant to art. 170 of the Code, anyone who, being obliged, does not comply with this prohibition order on processing is punished with imprisonment from three months to two years and that, in case of non-compliance with the same provision, the sanction referred to in art. 83, par. 5, lett. e) of the Regulation is also applied administratively.

Finally, the conditions referred to in art. 17 of Regulation no. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Garante, for the annotation of the violations noted here in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u) of the Regulation, are met.

ALL OF THE ABOVE HAVING BEEN STATED, THE GARANTE

pursuant to art. 57, par. 1, lett. f), of the Regulation, declares the processing described in the terms of the motivation carried out by Immobiliare Valdalpone S.r.l., based in via Corso Vittorio Emanuele II 34/c, 37038 Soave (VR), VAT no. 03716210236, unlawful; consequently:

a) pursuant to art. 58, par. 2, lett. f) of the Regulation, prohibits any further processing for promotional and commercial purposes carried out through the lists acquired from Realmaps for which the Company does not have free, specific, and informed consent from the data subjects (arts. 6 and 7 of the

Regulation, as well as 130 of the Code); this is due to the fact that some of the lists acquired from Realmaps, by the Company's express admission, continue to be retained in the company systems both in paper and digital format;

b) pursuant to art. 58, par. 2, lett. d), of the Regulation, orders the immediate deletion of said data, except for those that must be retained for compliance with a legal obligation or for the defense of a right in judicial proceedings as well as for any other purpose that does not require informed, free, specific, documented, and unequivocal consent from the data subject;

c) pursuant to art. 58, par. 2, lett. d) of the Regulation, orders the Company, should it intend to direct promotional activity in the future towards telephone numbers provided by third parties, to adopt suitable procedures aimed at constantly verifying, including through adequate random checks, that personal data are processed in full compliance with the relevant provisions (prior acquisition of free, specific, unequivocal, documented, as well as informed consent from the data subjects for the sending of commercial communications) (arts. 6, 7, and 14 of the Regulation);

d) pursuant to art. 58, par. 2, lett. d) of the Regulation, orders, for the purposes of the information obligation referred to in art. 13 of the Regulation, to provide the data subjects with all the information provided therein;

e) pursuant to art. 58, par. 2, lett. d) of the Regulation, orders Immobiliare Valdalone to adopt appropriate technical and organizational measures to facilitate the exercise of the rights provided for by the legislation on personal data protection and to satisfy, without unjustified delay, the related requests, including the right to object which may be raised "at any time" by the data subject;

f) pursuant to art. 157 of the Code, orders Immobiliare Valdalone to communicate to the Authority, within thirty days from the notification of this provision, the initiatives undertaken to end of implementing the imposed measure;

any failure to comply with the provisions of this point may result in the application of the administrative monetary sanction provided for by Art. 83, par. 5, of the Regulation.

ORDERS

pursuant to Art. 58, par. 2, lett. i), of the Regulation, Immobiliare Valdalone S.r.l., represented by its legal representative, to pay the sum of €15,000.00 (fifteen thousand) as an administrative monetary sanction for the violations indicated in the reasoning; it is noted that the offender, pursuant to Art. 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction.

REQUIRES

the aforementioned Company, in the event of failure to settle the dispute pursuant to Art. 166, paragraph 8, of the Code, to pay the sum of €15,000.00 (fifteen thousand), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions in accordance with Art. 27 of Law No. 689/1981;

PROVIDES

a) pursuant to Art. 154-bis of the Code and Art. 37 of Regulation No. 1/2019, the publication of this provision as well as, pursuant to Art. 166, paragraph 7, of the Code, the publication of this injunction order on the website of the Authority;

b) pursuant to Art. 17 of the Regulation of the Authority No. 1/2019, orders the annotation in the internal register of the Authority, as provided for by Art. 57, par. 1, lett. u) of the Regulation, of the violations and the measures adopted.

Pursuant to Art. 78 of Regulation (EU) 2016/679, as well as Arts. 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be made to the ordinary judicial authority, with an application filed at the ordinary court of the place where the data controller resides, or, alternatively, at the court of the place of residence of the data subject, within thirty days from the date of communication of this provision, or sixty days if the appellant resides abroad.

Rome, April 29, 2025

THE PRESIDENT

Stanzione

THE REPORTER

Cerrina Feroni

THE ACTING SECRETARY GENERAL
Filippi